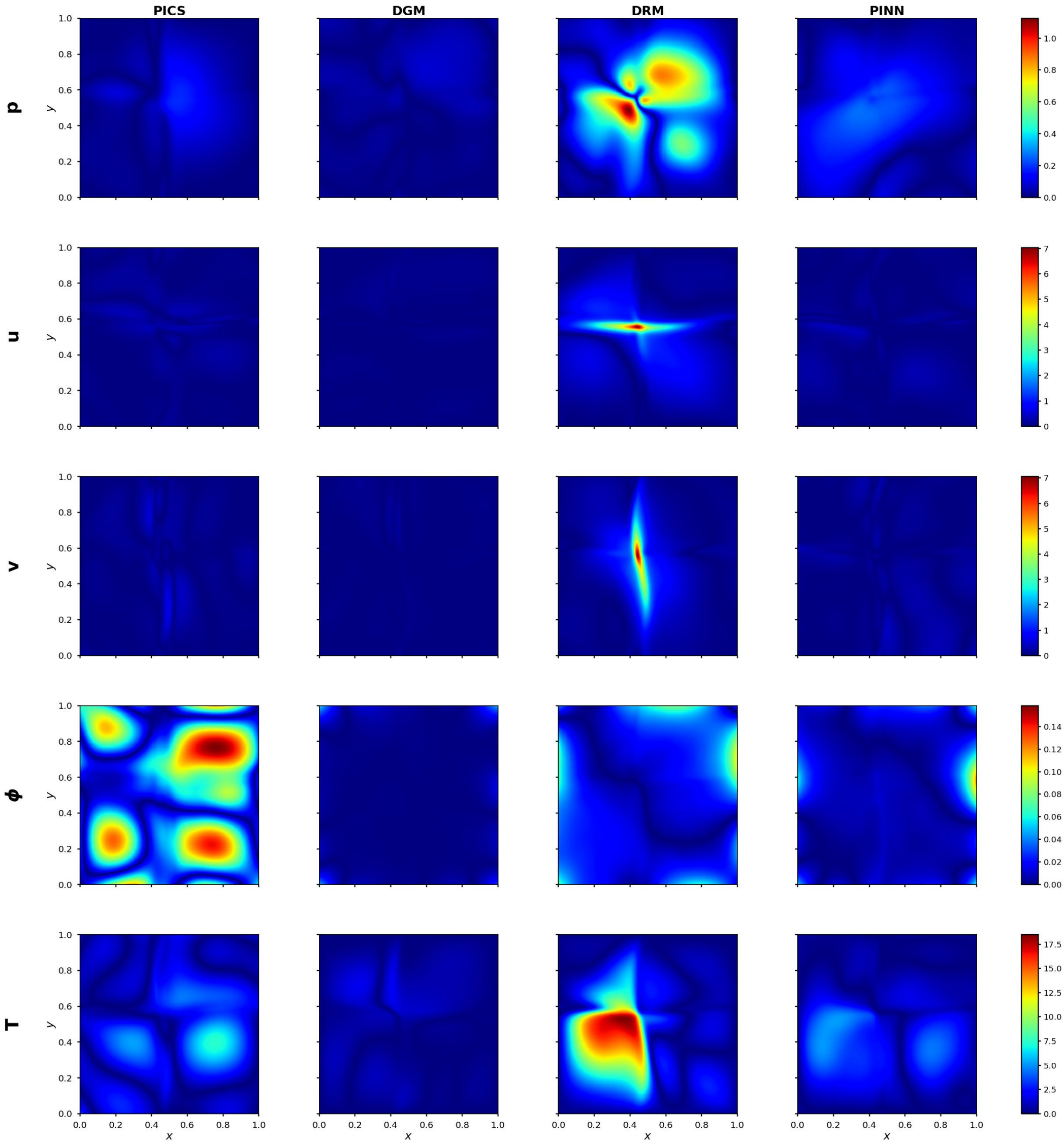case 3 | Max error only